

**BEFORE THE
BUREAU OF INDUSTRY AND SECURITY
U.S. DEPARTMENT OF COMMERCE**

**PETITION FOR RULEMAKING PURSUANT TO
5 U.S.C. § 553(e)**

In the Matter of: Petition for Rulemaking to Establish an Interagency
Information-Sharing Protocol for CEII-Protected Computational Load
Telemetry as a Semiconductor Diversion-Triage Input Under 15 C.F.R. Part 744

Pursuant to 5 U.S.C. § 553(e), Petitioner The Computational Infrastructure & Grid Telemetry Initiative (“Petitioner”) respectfully petitions the Bureau of Industry and Security (“BIS” or “the Bureau”) to initiate a rulemaking or issue guidance establishing a defined channel through which the Bureau may receive computational-load telemetry, generated pursuant to Reliability Standards of the Electric Reliability Organization under Section 215 of the Federal Power Act, for use as a triage input supporting the Bureau's existing end-use and diversion-verification responsibilities under 15 C.F.R. Part 744.

I. PETITIONER

Petitioner is an independent computational infrastructure research initiative organized in Canada. Petitioner specializes in the technical characterization of large-scale parallel computing facilities, bulk-power electrical telemetry, and non-invasive physical metrics to support international semiconductor export-control enforcement under the July 2025 AI Action Plan.

II. STATEMENT OF THE RULE OR ACTION REQUESTED

Petitioner requests that the Bureau:

A. Establish, by rule or by interagency memorandum of understanding referenced in the Code of Federal Regulations, a defined protocol under which the North American Electric Reliability Corporation (“NERC”) may transmit to the Bureau, on a need-to-know, Critical Energy/Electric Infrastructure Information (“CEII”)-protected basis, load-verification data for facilities meeting technical criteria to be jointly defined by NERC and the Bureau;

B. Confirm that such data will be used by the Bureau solely as one triage input — alongside existing supply-chain, licensing, and Entity List records — to help identify facilities whose apparent computational scale is inconsistent with their documented, licensed acquisition of controlled advanced computing items, for purposes of end-use and diversion verification under 15 C.F.R. Part 744; and

C. Confirm that this protocol does not, and is not intended to, establish any new mandatory reporting obligation directly applicable to domestic computing facilities, and is distinct from, and does not revive, the reporting requirements formerly contemplated under Executive Order 14110 (rescinded January 20, 2025).

III. STATEMENT OF GROUNDS

A. Legal Authority

The Bureau's authority to identify and control emerging and foundational technologies derives from Section 1758 of the Export Control Reform Act of 2018, codified at 50 U.S.C. § 4817, and the Bureau's broader authority under 50 U.S.C. §§ 4801–4852 and 15 C.F.R. Part 744 to impose end-use and end-user based controls. The requested protocol does not ask the Bureau to exceed this authority; it asks the Bureau to establish a defined intake channel for information relevant to the exercise of authority the Bureau already possesses.

B. Policy Basis

The Administration's July 2025 AI Action Plan calls for strengthening AI compute export control enforcement, exploring location-verification technologies for AI chip deployment, and establishing a Department of Commerce-led enforcement collaboration with the Intelligence Community to monitor emerging AI compute risks and expand end-use monitoring. The protocol requested here is a direct, low-cost implementation of that stated priority: it uses data the Electric Reliability Organization already has independent reliability-based reason to collect — through NERC Project 2026-02's draft Reliability Standard CLO-001-1 (Computational Load Interconnection, Studies, & Modeling Data), developed pursuant to the Commission's order in Docket No. RD26-7-000, 196 FERC ¶ 61,031 (July 16, 2026), and described further in the concurrently filed comments of Petitioner in FERC Docket No. RM26-4-000 — as a supplementary triage signal, without imposing any new collection burden on the Bureau or any new reporting burden on regulated entities beyond what NERC Reliability Standards already require.

C. Factual Basis

No mechanism currently exists to cross-reference public utility interconnection or reliability data against the Bureau's licensing and Entity List records for the purpose of identifying computational loads whose apparent scale may be inconsistent with documented, licensed acquisition of controlled advanced computing items. NERC's own decision, in Docket No. RD26-7-000 and Project 2026-02, to establish a new “computational load entity” registration category — a category that does not exist today — reflects the same underlying gap: neither NERC's existing registration criteria nor RTO generation and storage interconnection queues, which are structured to capture generating and storage resources rather than load, currently produce a standardized public accounting of large computational loads. Petitioner does not represent that this gap has been exploited for diversion purposes in any specific instance. The basis for this Petition is the structural absence of a cross-referencing mechanism, not a claim of documented evasion.

IV. REQUESTED ACTION

Petitioner respectfully requests that the Bureau grant this petition and initiate the rulemaking or guidance process described above or, in the alternative, respond to this petition within a reasonable time explaining the Bureau's disposition, consistent with 5 U.S.C. §§ 553(e) and 555(b).

V. CONCLUSION

For the reasons stated above, Petitioner respectfully requests that the Bureau grant this Petition.

Respectfully submitted,

/s/ Technical Drafting Committee

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Dated: September 13, 2026